COMMITTEE ON OVERSIGHT AND ACCOUNTABILITY

SELECT SUBCOMMITTEE ON THE CORONAVIRUS PANDEMIC

U.S. HOUSE OF REPRESENTATIVES

WASHINGTON, D.C.

INTERVIEW OF: DAVID MORENS, M.D.

December 29, 2023

The Interview Commenced at 10:38 a.m.

Appearances

For the SELECT SUBCOMMITTEE ON THE CORONAVIRUS PANDEMIC:
MITCH BENZINE, Staff Director
ERIC OSTERHUES, Majority Counsel
[redacted] Minority Senior Counsel

For the COMMITTEE ON ENERGY AND COMMERCE:
JOHN STROM, Majority Counsel
ALAN SLOBODIN, Majority Counsel
[redacted] Minority Counsel

For the U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES:
TARA GANAPATHY, Senior Counsel
DARIA BERSTELL, Legislative Analyst
JESSICA CREERY, NIH

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Exhibits

Exhibit No.		Page No.
1	Memorandum dated December 28, 2023, to Dr. David M. Morens, M.D. from Melanie Anne Egorin	10
2	Title 5 - Government Organization and Employees, page 844	12

P R O C E E D I N G S

Mr. Benzine. We can go on the record.

This is a transcribed interview of Dr. David Morens, conducted by the House Select Subcommittee on the Coronavirus Pandemic, pursuant to House Resolution 5 and the rules of the Committee on Oversight and Accountability.

This interview was requested by Chairman Brad Wenstrup as part of the Select Subcommittee's oversight of the federal government's response to the coronavirus pandemic. Further, pursuant to House Resolution 5, the Select Subcommittee has wide-ranging jurisdiction, but specifically to investigate the origins of the coronavirus pandemic, including, but not limited to, the federal government's funding of gain of function research.

At the discretion of Chairman Wenstrup, the staff of the Committee on Energy and Commerce have been granted permission to attend and participate in this interview.

Can the witness please state his name and spell his last name for the record?

The Witness. It's David Michael Morens, M-O-R-E-N-S.

Mr. Benzine. Thank you, Dr. Morens. My name is Mitch Benzine, and I am the staff director for the Majority Staff of the Select Subcommittee. I want to thank you for coming in today for this interview. We recognize that you are here voluntarily, and we appreciate that.

Under the Select Subcommittee and Committee on Oversight and Accountability's rules, you are allowed to have an attorney present to advise you during this interview. Do you have an attorney representing you in a personal capacity with you today?

The Witness. Yes, I do.

Mr. Benzine. Will counsel please identify themselves?

Mr. Belevetz. I am Tim Belevetz with the law firm of Ice Miller.

Mr. Benzine. Is there also an attorney present representing the Department of Health and Human Services?

Ms. Ganapathy. Yes.

Mr. Benzine. Will counsel identify themselves?

Ms. Ganapathy. Tara Ganapathy, senior counsel, HHS.

Mr. Benzine. For the record, starting to my right, can the additional staff please introduce themselves with their name, title, and affiliation?

Mr. Strom. John Strom, senior counsel, House Energy and Commerce Majority, Subcommittee on Oversight and Investigations.

Mr. Osterhues. Eric Osterhues, chief counsel, Select Subcommittee on the Coronavirus Pandemic, Majority Staff.

Mr. Slobodin. Alan Slobodin, chief investigative counsel, House Energy and Commerce Committee, Majority Staff.

[redacted], counsel, Energy and Commerce

Minority Staff.

[redacted], senior counsel, Select Subcommittee, Democratic staff.

Ms. Creery. Jessica Creery, NIH legislative office.

Ms. Berstell. Daria Berstell, HHS, Office of the Assistant Secretary for Legislation.

Mr. Benzine. Thank you all.

EXAMINATION BY COUNSEL FOR THE SUBCOMMITTEE

BY MR. BENZINE.

Q Dr. Morens, before we begin, I would like to go over the ground rules for this interview.

The way the interview will proceed is as follows: The Majority and Minority Staff will alternate asking you questions, one hour per side per round, until each side is finished with their questioning. The Majority Staff will begin and proceed for an hour, and then the Minority Staff will have an hour to ask questions. We will then alternate back and forth in this manner until both sides have no more questions.

If either side is in the middle of a specific line of questions, they may choose to end a few minutes past an hour to ensure completion of that specific line of questioning, including any pertinent follow-ups. In this interview, while one member of the staff for each side may lead the questioning, additional staff may ask questions.

There is a court reporter taking down everything I say and everything you say to make a written record of the interview. For the record to be clear, please wait until the staffer questioning you finishes each question before you begin your answer, and the staffer will wait until you finish your response before proceeding to the next question.

To ensure the court reporter can properly record this interview, please speak clearly, concisely, and slowly. Also, the court reporter cannot record non-verbal answers such as nodding or shaking your head, so it is important that you answer each question with an audible, verbal answer.

Exhibits may be entered into the record. Majority exhibits will be identified numerically, Minority exhibits will be identified alphabetically.

We will remain on the record until the staffer speaking says otherwise. Do you understand?

A Mm-hmm. Yes, I do.

Q We want you to answer our questions in the most complete and truthful manner possible. If you have any questions or do not fully understand the question, please let us know and we will attempt to clarify, add context to, or rephrase our questions. Do you understand?

A I do.

Q If we ask about a specific conversation or event in the past and you are unable to recall the exact words or

details, you should testify to the substance of those conversations or events to the best of your recollection. If you recall only a part of a conversation or event, you should give us your best recollection of those events or parts of conversations that you do recall. Do you understand?

A Yes, I do.

Q Although you are here voluntarily and we will not swear you in, you are required pursuant to Title 18, Section 1001 of the United States Code to answer questions from Congress truthfully. This also applies to questions posed by congressional staff in this interview. Do you understand?

A I do.

Q If at any time you knowingly make false statements, you could be subject to criminal prosecution. Do you understand?

A I do.

Q Is there any reason you are unable to provide truthful testimony today?

A No.

Q The Select Subcommittee follows the rules of the Committee on Oversight and Accountability. Please note that if you wish to assert a privilege over any statement today, that assertion must comply with the rules of the Committee on Oversight and Accountability.

Pursuant to that, Committee Rule 16(c)(1) states: "For

the chair to consider assertions of privilege over testimony or statements, witnesses or entities must clearly state the specific privilege being asserted and the reason for the assertion on or before the scheduled date of testimony or appearance." Do you understand?

A Yes.

Q Ordinarily, we take a five-minute break at the end of each hour of questioning, but if you need a longer break or a break before that, please let us know and we will be happy to accommodate. However, to the extent that there is a pending question, we would ask that you finish answering the question before we take the break. Do you understand?

A Yes.

Q Do you have any other questions before we begin?

A No.

Q Thank you.

Dr. Morens, before we get into the substance last night, I'm presuming you, Tim, and we received an authorization memo from HHS Assistant Secretary Egorin. I would like to introduce that as Exhibit 1.

(Morens Exhibit No. 1 was identified for the record.)

Ms. Ganapathy. Do you have copies for Agency staff?

Mr. Benzine. I'll wait for it to get around.

BY MR. BENZINE.

Q Did you receive this memo last night?

A I did.

Mr. Benzine. Did counsel receive this memo last night?

Mr. Belevetz. Yes.

Mr. Benzine. I would like to state for the record that the Select Subcommittee did not and does not agree to the terms of this memo. Despite that, the operative paragraph reads: "Given that the subject matter of the Select Subcommittee's requests center on communications from your personal, rather than official NIH, accounts, it is the Department of Health and Human Services' understanding that you will not be providing information about your work for NIAID. If you have any questions regarding the scope of your authorization to discuss information pertaining to your official work, please consult with agency counsel prior to disclosure of such information to the Select Subcommittee."

The premise that the Select Subcommittee's inquiry only involves your use of personal email is false. The letter sent to you by Chairman Wenstrup, in fact, cited emails sent from your official email and other documents through which you have knowledge regarding COVID origins. The Department knows this.

Second, the Department cannot block you from providing testimony regarding your official work at NIAID or on COVID origins. The decision as to what testimony you give rests solely with you. The Department also knows this.

I would like to introduce Majority Exhibit 2.

(Morens Exhibit No. 2 was identified for the record.)

BY MR. BENZINE.

Q While it is working its way around, I will identify it. At the bottom right side of the second column, this is Title 5, Section 7211 of the United States Code. It reads: "The right of employees, individually or collectively, to petition Congress or a Member of Congress, or to furnish information to either House of Congress, or to a committee or Member thereof, may not be interfered with or denied."

Dr. Morens, the Department's authorization memo is attempting to obstruct this committee and attempting to interfere with your legal right to furnish information to Congress.

Ms. Ganapathy. Mitch, I'm going to object to your characterization of the authorization memo.

Mr. Benzine. That's fine.

Ms. Ganapathy. We do not intend to obstruct anything. As you know, in our email to you, we are happy to discuss any questions you have regarding Dr. Morens' official activities, official communications, at the appropriate venue and time. However, the Committee did not engage with the agency at all in connection with this interview, so we understood him to be called in his personal capacity today.

Mr. Benzine. That's fine.

Mr. Strom. So I'm trying to understand this because I'm not familiar with authorization memos in the eight or so years that I've been doing this. It says, "you are authorized to provide information to the Select Subcommittee." Is it HHS's position that this is legally binding on Dr. Morens, such that if he doesn't comply with it, he would be subject to, like, an adverse employment consequences?

Ms. Ganapathy. That's not our position. Our position is that this is what we authorized him to provide information on, as it says in the memorandum. And as you know, our instructions to him will be to limit his responses to non-official personal activities and communications.

Mr. Strom. So I guess what I'm struggling with is that there are multiple laws that say you can't do this, you can't restrict somebody's authority, like an employee's ability to talk to Congress.

In the face of this memo, it says you could only provide this information. So whether it's the statute Mitch cited or the one I'm going to bring up, which is 1523.02, either this is legally enforceable, like you're going to take action against Dr. Morens if he strays from this, or it's just an advisory opinion and it's effectively meaningless. So which is it?

Ms. Ganapathy. So, John, it sounds like you have a lot

of questions that are not for the witness that are instead for the agency, and I suggest that you engage with the agency on those questions.

Mr. Strom. If we go forward today, you're going to object to things that are outside the scope of this memo. If you're going to tell him, despite his constitutional legal right to tell us any information he wants to, you're going to tell him, don't tell us.

We didn't agree to the scope of this. You dropped this on us at 8:00 last night, 7:00 last night. This was not part of any sort of bargained for negotiation with the Committees.

Ms. Ganapathy. John, if you have questions about this, you should really talk to the leg. affairs office. I can't -- this is an authorization memo. You see what's on the page.

Mr. Strom. If this is legally binding on Dr. Morens, this is a crime. So it's either advisory and he can answer whatever questions we ask him, or HHS is taking the position that you can interfere with an employee's ability to talk to Congress.

Ms. Ganapathy. HHS does not take the position that we can interfere with an employee's ability to talk to Congress.

Mr. Strom. So then the scope of this authorization is, I guess, advisory to Dr. Morens?

Ms. Ganapathy. John, in the memo itself, it says, "The

purpose of this memorandum is to provide you with guidance on the extent to which you are authorized to provide information to the Select Subcommittee in your capacity as an NIH employee." That's the purpose of the memorandum.

Mr. Strom. "If you have any questions regarding the scope of your authorization to discuss information pertaining to your official work, please consult with agency counsel prior to disclosure of such information to the Select Subcommittee."

That sounds mandatory. And I guess the concern is particularly acute with Dr. Morens, because the previous ones have more or less been within the scope of, like, the February letters. But with Dr. Morens, we unfortunately have the situation where he isn't able to be represented by agency counsel, but he's retained counsel on his own dime, so there's a divergence of legal interests between Dr. Morens and the Department.

I might also add that the Department is going to be the one that's adjudicating the NARA, the records retention issues. And so the impression that this memo gives is that you guys are essentially precluding him from speaking to stuff that's relevant to the origins investigation uniquely to him.

But you also have a unique degree of leverage over him because he is under investigation, like any -- I don't know the probability of this, but, like, technically, he's at risk

of being separated from federal service, he's at risk of having portions of his pension forfeited for these violations.

Those are adjudications of, like, OGC HHS are going to be involved in making. And you're now telling him, you can't talk about your official work at NIAID when every other NIAID employee that we've done a voluntary interview with has been allowed to talk about that.

Ms. Ganapathy. John, this memorandum is separate and apart from any internal personnel process that might be happening. To be clear, it is not any kind of compulsion or threat that there will be adverse employment consequences if he does not abide by the terms of it. That is not the case.

Mr. Strom. So this is purely advisory? We can ask him questions like we have every other NIAID official?

Ms. Ganapathy. You can ask him questions as you would any other NIAID official. We will instruct him to limit his responses to his personal, non-official activities. He, as a witness, is free to respond as he sees fit.

Mr. Strom. All while the Department is adjudicating his Federal Records Act issues.

Ms. Ganapathy. I think it's not correct that the Department is adjudicating those issues.

Mr. Strom. Didn't the National Archives tell you to?

Ms. Ganapathy. That is a separate component within NIH. It's a separate process insulated from any Congressional

investigations going on.

Mr. Benzine. But it's within the Department. The Department is adjudicating the issues.

Mr. Osterhues. NARA directed the Department to investigate, and NARA has an interest in the records. The agency would seem to have an interest in any personnel action. So it is a personnel action that's before the Department currently, and I don't know how you can say it isn't.

Mr. Benzine. So I guess your position is that this is advisory. If Dr. Morens wants to disregard your instruction, he can?

Ms. Ganapathy. Yes.

Mr. Benzine. Okay.

Mr. Belevetz. We interpret this as binding upon Dr. Morens. Because of the ambiguity, we're going to play it safe and I'm going to instruct him, as I believe agency counsel will, to not answer questions that relate to agency business.

There is ambiguity, there are two different positions with respect to the interpretation of this. And until we get some clarity on which is the correct position, we're going to take the cautious approach.

Mr. Strom. Look, as a public defender before coming to the Hill, that is my concern, there is this divergence of interest that is unique amongst NIAID officials that we've

interviewed. And then to have this at the 11th hour dropped in, that is also a uniquely restrictive scope because it does clash with, like, Black Letter statute.

Ms. Ganapathy. John, before you move on, you told us yesterday about your intended scope for him and so we responded the same day.

Mr. Strom. We told you in February when we wrote the initial letters, and you're punishing us for accommodating.

Ms. Ganapathy. We're not punishing anyone.

Mr. Strom. You're penalizing us for accommodating you, because every time we wrote you a new letter narrowing our request, trying to target to meet what you guys wanted to do, you're now holding that against us by saying you can only talk about that stuff, which is ridiculous.

Ms. Ganapathy. If the Committees feel that they can't have a useful, fulsome interview and get answers to their questions regarding his personal, unofficial activities today without adding in the agency component, we can talk about rescheduling this. That is something that we have always left the door open to. And we don't want to deprive you of anything and we certainly do not want to block any testimony whatsoever, but this is the authorization. I know you have the Department's position. I can't add any more to that.

Mr. Strom. So the Assistant Secretary is willing to explain to Chair Comer, Dr. Wenstrup, Mr. Griffith, CMR,

Mr. Guthrie that: We're totally cooperative, but you can only ask him about this stuff. Even though we will tell all of our chairs that we never agreed to this, that this was -- I'll show them the email. This was sent to us the night before, and I'll show them the other authorization memos that are materially different from this one.

Mr. Benzine. Dr. Morens was also listed as the custodian of the September 14th letter on all kinds of topics, EcoHealth, the Wuhan Institute of Virology, all the topics that we have been discussing with every other executive agent/branch employee.

Mr. Strom. Dr. Morens, I'm sorry we are having to sort this out in front of you.

Ms. Ganapathy. We're burning up a lot of time that you have put aside to ask Dr. Morens about questions that I'm sure you have. I think this would be a more productive conversation if you actually talk to leg. affairs about it. I can't tell you anything more than what you already know.

Mr. Benzine. I'm going to ask Dr. Morens a couple questions and then we'll make a decision on a path forward.

BY MR. BENZINE.

Q I think you just heard it, but I want to get it on the record. Dr. Morens, are you aware that government counsel represents the interests of the Department and not you?

A Yes.

Q Are you aware that if the Department instructs you to not answer a question, even pursuant to Majority Exhibit 1, the Subcommittee may request you return and testify again?

A Yes.

Q Are you aware that if you refuse any questions, pursuant to Exhibit 1, the Select Subcommittee has the authority to subpoena you and compel your testimony?

A Yes.

Q In this case, if you refuse to answer questions, the Chairman has instructed me to execute a subpoena before next week. We don't want to do that. We want to finish this today. We want to be as efficient as possible and not have you return.

Now that you're aware of these facts, I am going to ask you two questions and then we will go off the record and you can discuss with your personal counsel how you want to proceed. These two questions are what I want you to discuss.

Are you willing to answer the Subcommittee's questions notwithstanding the authorization in Exhibit 1? And then considering this discussion, would you prefer to testify without Department representatives present?

We can go off the record.

(Recess.)

Mr. Benzine. We can go back on the record.

BY MR. BENZINE.

Q So I asked you two questions before we went off the record. I'm going to ask you again, and you can provide the answers that you discussed with counsel to those questions.

Are you willing to answer the Subcommittee's questions notwithstanding the authorization in Exhibit 1?

A Notwithstanding. Just I'm a little confused by the word "notwithstanding." I think the answer is no.

Q Okay. Would you prefer to testify without Department representatives present?

A No.

Mr. Benzine. Considering the witness's unwillingness to answer questions and the Department's current position, the Chairman will be issuing a subpoena to compel his testimony. We can go off the record. We're done for the day.

[Whereupon, at 11:03 a.m., the taking of the instant interview ceased.]